

Enter Stipulated Judgment after Default was set for hearing on March 16, 2026.

Background

The parties entered into that certain settlement agreement filed on January 19, 2024 (the “Settlement Agreement”), the terms of which included payment by the defendant Gemma D Sambhi (“Defendant”) in the amount of \$2,712.00, to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Plaintiff’s Counsel filed October 2, 2025 (“Supporting Declaration”), ¶15 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of \$3,372.45 plus costs, less credits for payments made, in the event of a default. *Id.*, **Exhibit A**, ¶¶12-6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶17. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶16.

After credit for amounts paid, there remains \$1,790.45 due and owing, plus costs of \$293.50. See Supporting Declaration, ¶¶9-10; see Memorandum of Costs filed October 2, 2025.

Analysis

Code of Civil Procedure section 664.6 provides a summary procedure for the enforcement of a settlement agreement by entering a judgment pursuant to the terms of the parties’ settlement. Code Civ. Proc. § 664.6; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) (“CJER Civ. Pro.—Trial”), § 15.31. Where the parties stipulate to settle pending litigation either in writing or orally before the court, the court may, on motion, enter a judgment pursuant to the settlement terms. *Id.* The court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$1,790.45, plus costs of \$293.50, totaling \$2,083.95.
4. Plaintiff to submit a revised form of money judgment which appropriately designates Plaintiff’s current legal name (e.g. “Capital One, N.A., successor by merger to Discover Bank”). If no order for leave to amend Plaintiff’s name has been previously entered, leave is hereby granted and the operative complaint deemed so amended. The Court takes judicial notice of the “NOTICE OF PLAINTIFF MERGER” filed in multiple pending cases before the Court regarding the merger.
5. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.
6. The Court shall issue the order after hearing.

CASE NAME: CAPITAL ONE, N.A. VS. BRANDIE BREWER

***HEARING ON MOTION IN RE: SET ASIDE CCP 664 AND ENTER JUDGMENT**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Plaintiff Capital One, N.A. ("Plaintiff") filed a Motion to Set Aside CCP 664.6 Dismissal, and Enter Judgment against Defendant pursuant to Code of Civil Procedure section 664.6 on October 2, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on March 16, 2026.

Background

The parties entered into that certain settlement agreement filed on October 8, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Brandie Brewer ("Defendant") in the amount of \$10,312.99, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Laura M. D'Anna filed October 2, 2025 ("Supporting Declaration"), ¶¶4-6 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of \$10,312.99 plus costs, less credits for payments made, in the event of a default. *Id.*, **Exhibit 1**, ¶¶4-5 and 8.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶19. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶¶4 and 8.

After credit for amounts paid, there remains \$8,592.99 due and owing, plus costs of \$508.00. See Supporting Declaration, ¶¶9-11.

Analysis

Code of Civil Procedure section 664.6 provides a summary procedure for the enforcement of a settlement agreement by entering a judgment pursuant to the terms of the parties' settlement. Code Civ. Proc. § 664.6; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 15.31. Where the parties stipulate to settle pending litigation either in writing or orally before the court, the court may, on motion, enter a judgment pursuant to the settlement terms. *Id.* The court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,592.99, plus costs of \$508.00, totaling \$9,100.99.
4. Plaintiff's submitted form of money judgment against Defendant will be entered by the Court.
5. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

6. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: N25-1849
CASE NAME: GARY DARTEZ VS. CITY OF ANTIOCH RENT PROGRAM
***HEARING ON MOTION IN RE: ORDER PRESERVING EVIDENCE**
FILED BY:
TENTATIVE RULING:

Petitioners Gary Dartez and Tamisha Latimore (“Petitioners”) filed a Motion for Order Preserving Evidence on January 14, 2026 (the “Motion for Order Preserving Evidence”). The matter was set for hearing on March 16, 2026.

Background

Petitioners seek an “Order Preserving Evidence to prevent further loss, alteration, or destruction of evidence material to this action and related proceedings.” See Motion for Order Preserving Evidence, p. 1 *et seq.*

Analysis

Failure to Properly Serve

First, Petitioner purported to serve the Motion for Order Preserving Evidence by mail on an apparent agent for service of process.

Respondent City of Antioch (the “City”) has already appeared in the matter through its counsel of record, the City Attorney and Meyers Nave. Service should have been done on the City’s counsel of record. Nonetheless, the City filed an Opposition.

For this reason alone, the Court would deny the motion.

Denial on the Merits

Second, even if properly served, the Court would deny the motion on the merits.

Petitioners reference the “Court’s inherent equitable authority, Code of Civil Procedure §§ 128(a)(1), 128(a)(4)” and *Williams v. Russ* (2008) 167 Cal.App.4th 1215 as the authority for the motion.

The *Williams* case dealt with a trial court’s findings that the evidence supported an inference that a client in a legal malpractice lawsuit had intentionally allowed material unfavorable to his claims to be destroyed. *Williams v. Russ* (2008) 167 Cal.App.4th 1215. The court upheld discovery sanctions for spoliation of evidence. *Id.* at 1228. The case has nothing to do with the Court’s authority to issue a “preservation order” to prevent the spoliation of evidence, especially as relates to a third party to the pending litigation. Nor do subsections (a)(1) or (a)(4) of Code of Civil Procedure section 128 related to authority to issue a “preservation order” to prevent the spoliation of evidence.

Nonetheless, the Court most certainly has authority to make orders for the preservation of relevant evidence in the parties’ possession for discovery purposes. See discussion in *Weil & Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:19.12; see *Northpoint Homeowners Assn. v. Superior Court* (1979) 95 Cal. App. 3d 241, 244 (“...the trial court has inherent power to make certain orders in furtherance of the discovery and presentation of evidence related to pending civil litigation.”)

However, Petitioners have failed to show that the Court ought to exercise such authority here by issuing